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Guilty of an Unsolved Crime?

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> ‘Five heavily armed persons stormed the Parliament House complex and inflicted heavy casualties on the security men on duty. This unprecedented event bewildered the entire nation and sent shockwaves across the globe. In the gun battle that lasted thirty minutes, these five terrorists who tried to gain entry into the Parliament when it was in session, were killed. Nine persons including eight security personnel and one gardener succumbed to the bullets of the terrorists and sixteen persons including thirteen security men received injuries. The five terrorists were ultimately killed . . .’
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> —From the Supreme Court judgement on the attack on the Indian Parliament

Six years and three judgements later, we still do not ‘reliably’ know who attacked Parliament on 13 December 2001. What we do know is that Mohammad Afzal Guru, the alleged conspirator, was awarded the death penalty, but is he being made a scapegoat? Is Afzal being held guilty for a crime that is still unsolved?

Consider this: the ‘comprehensive investigation’ of the attack on Parliament was completed in seventeen days flat by the investigators, the Special Cell of the Delhi Police. The prosecution story of who attacked Parliament, which is popularly believed to be the real story, is based on the confession of the main accused under the Prevention of Terrorism Act (POTA), Afzal Guru, to the police, but the Supreme Court itself has dubbed this confession, and thus, in effect, the conspiracy theory behind the attack floated by the police, as ‘unreliable’.[1]

There are twelve accused in the Parliament attack case. Five of them—Mohammad, Tariq, Hamza, Rana and Raja—were killed when they tried to lay siege on Parliament. Three—Ghazi Baba, Masood Azhar and Tariq, allegedly the masterminds behind the attack and Lashkar-e-Toiba (LeT) and Jaish-e-Mohammad (JeM) operatives—were never arrested; Ghazi Baba was